

Addendum to Contract for Residential Sale and Purchase



If initialed by all parties, the terms below will be incorporated into the Contract for Residential Sale and Purchase

Between _____ ("Seller")

and _____ ("Buyer")

concerning the Property described as _____

(_____) (_____) - (_____) (_____) **F. Condominium Association:** The Property is a condominium which is subject to the rules and regulations of a condominium association ("Association"). If the condominium property is subject to a master Homeowners' Association, also attach Homeowners' Association Addendum. **Seller's** warranty under Paragraph 8 of this Contract, risk of loss under Paragraph 9 of this Contract, and As Is with Right to Inspect Addendum (if applicable) extend to the unit and limited common elements appurtenant to the Property and not to any other common elements or any other property.

1. Documents: Seller will, at Seller's expense, deliver to Buyer the current and complete condominium documents (a current copy of the declaration of condominium, articles of incorporation, bylaws and rules of the association, and a copy of the most recent year-end financial information and frequently asked questions and answers document if so requested in writing) referenced in Paragraph 11 below. (If Buyer has already received the required documents, indicate receipt by initialing here: (_____) (_____) and indicate date of receipt here: _____.) If this Contract does not close, Buyer will immediately return the documents to Seller.

2. Association Approval: If the condominium declaration or bylaws give the Association the right to approve Buyer as a purchaser, this Contract is contingent on such approval by the Association. Buyer will apply for approval within _____ days (5 days if left blank) after Effective Date and use diligent effort to obtain approval, including making personal appearances and paying related fees if required. Seller and Buyer will sign and deliver any documents required by the Association to complete the transfer. If Buyer is not approved, this Contract will terminate; and Buyer's deposit(s) will be refunded unless this Contract provides otherwise.

3. Right of First Refusal: If the Association has a right of first refusal to buy the Property, this Contract is contingent on the Association deciding not to exercise such right. Seller will, within 3 days after receipt of the Association's decision, give Buyer written notice of the decision. If the Association exercises its right of first refusal, this Contract will terminate, Buyer's deposit(s) will be refunded unless this Contract provides otherwise, and Seller will pay broker's full commission at Closing in recognition that broker procured the sale.

4. Application / Transfer Fees: Buyer will pay any application and/or transfer fees charged by the Association.

5. Parking Space; Boat Slip; Storage Unit: Seller will assign to Buyer at Closing parking space(s) #_____, boat slip(s) #_____, and storage unit(s) #_____.

6. Fees: Seller will pay all fines imposed against the unit as of Closing and any fees the Association charges to provide information about its fees or the Property and will bring maintenance and similar periodic fees and rents on any recreational areas current as of Closing. If after Effective Date, the Association imposes a special assessment for improvements, work, or services, Seller will pay all amounts due before Closing and Buyer will pay all amounts due on or after Closing. If special assessments may be paid in installments ☐ Seller ☐ Buyer (Buyer if left blank) will pay installments due after Closing. If Seller is checked, Seller will pay the assessment in full before or at Closing. Seller represents that he/she is not aware of any pending special or other assessment that has been levied by the Association, except as follows: _____

Seller represents that he/she is not aware of any special or other assessment that has been an item on the agenda or reported in the minutes of the Association within 12 months before Effective Date ("Pending"), except as follows: _____

If special or other assessments, levied or Pending, exist as of Effective Date and have not been disclosed above by Seller, then Seller will pay such assessments in full before or at Closing.

Seller represents that he/she is not aware of pending or anticipated litigation affecting the Property or the common elements, except as follows: _____

(See Continuation)

F. Condominium Association Addendum (Continued)

49*

50 **Seller** represents that the current assessments, maintenance, and/or association fees are:

51* \$_____ per _____ to _____

52* \$_____ per _____ to _____

53* \$_____ per _____ to _____

54* and that there ☐ is ☐ is not a recreation or land lease with the Property. If there is a recreation or land lease, the

55* current payment is \$_____ per month.

56 **7. Damage to Common Elements:** If any portion of the common elements is damaged by fire, hurricane, or
57 other casualty before Closing, either party may cancel this Contract and **Buyer's** deposit(s) will be refunded if (i)
58 as a result of damage to the common elements, the Property appraises below the purchase price and either
59 the parties cannot agree on a new purchase price or **Buyer** elects not to proceed, or (ii) the Association
60 cannot determine the assessment attributable to the Property for the damage at least 5 days before
61 Closing, or (iii) the assessment determined or imposed by the Association attributable to the Property for
62* damage to the common elements is greater than \$_____ or _____% (1.5% if left blank) of the
63 purchase price.

64 **8. Sprinkler System:** If the unit owners voted to forego retrofitting each unit with a fire sprinkler or other engineered
65 life safety system, **Seller** will provide **Buyer**, before Closing, a copy of the Association's notice of the vote to
66 forego retrofitting.

67 **9. Hazard Insurance:** After Closing **Buyer** may be required to provide the Association with evidence of a currently
68 effective policy of hazard and liability insurance upon request of the Association.

69 **10. Governance Form; Milestone Inspection Report; Structural Integrity Reserve Study:**

70 (a) Governance Form: Pursuant to Chapter 718 F.S., Buyer is entitled to receive from Seller a copy of a governance
71 form provided by the Division of Florida Condominiums, Timeshares, and Mobile Homes of the Department
72 of Business and Professional Regulation, summarizing governance of condominium
73 associations.

74
75 (b) Milestone Inspection Report Summary: Pursuant to Section 718.503(2)(a)5, F.S., Buyer who has entered
76 into this Contract is entitled to, at Seller's expense, to receive from Seller, before the sale of the Property, a
77 copy of the inspector-prepared summary of the milestone inspection report, as described in Sections 553.899
78 and 718.301(4)(p), Florida Statutes, if (1) applicable and (2) the summary has been submitted to the
79 Association.

80
81 (c) Structural Integrity Reserve Study: Pursuant to Section 718.503(2)(a)6, F.S., Buyer who has entered into this
82 Contract is entitled, at Seller's expense, to receive from Seller, before the sale of the Property, a copy of the
83 Association's most recent structural integrity reserve study or a statement that the Association has not
84 completed a structural integrity reserve study.

85
86 **11. Buyer Acknowledgement; Seller Disclosure: (Check whichever applies)**

* ☐ **THE BUYER HEREBY ACKNOWLEDGES THAT BUYER HAS BEEN PROVIDED A CURRENT COPY OF THE DECLARATION OF CONDOMINIUM, ARTICLES OF INCORPORATION OF THE ASSOCIATION, BYLAWS AND RULES OF THE ASSOCIATION, AND A COPY OF THE MOST RECENT YEAR-END FINANCIAL INFORMATION AND FREQUENTLY ASKED QUESTIONS AND ANSWERS DOCUMENT MORE THAN 3 DAYS, EXCLUDING SATURDAYS, SUNDAYS, AND LEGAL HOLIDAYS, PRIOR TO EXECUTION OF THIS CONTRACT.**

Buyer (____) (____) and **Seller** (____) (____) acknowledge receipt of a copy of this page.

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F. Condominium Association Addendum (Continued)

* ☐ THIS AGREEMENT IS VOIDABLE BY BUYER BY DELIVERING WRITTEN NOTICE OF THE BUYER'S INTENTION TO CANCEL WITHIN 3 DAYS, EXCLUDING SATURDAYS, SUNDAYS, AND LEGAL HOLIDAYS, AFTER THE DATE OF EXECUTION OF THIS AGREEMENT BY THE BUYER AND RECEIPT BY BUYER OF A CURRENT COPY OF THE DECLARATION OF CONDOMINIUM, ARTICLES OF INCORPORATION, BYLAWS AND RULES OF THE ASSOCIATION, AND A COPY OF THE MOST RECENT YEAR-END FINANCIAL INFORMATION AND FREQUENTLY ASKED QUESTIONS AND ANSWERS DOCUMENT IF SO REQUESTED IN WRITING. ANY PURPORTED WAIVER OF THESE VOIDABILITY RIGHTS SHALL BE OF NO EFFECT. BUYER MAY EXTEND THE TIME FOR CLOSING FOR A PERIOD OF NOT MORE THAN 3 DAYS, EXCLUDING SATURDAYS, SUNDAYS, AND LEGAL HOLIDAYS, AFTER THE BUYER RECEIVES THE DECLARATION, ARTICLES OF INCORPORATION, BYLAWS AND RULES OF THE ASSOCIATION, AND A COPY OF THE MOST RECENT YEAR-END FINANCIAL INFORMATION AND FREQUENTLY ASKED QUESTIONS AND ANSWERS DOCUMENT IF REQUESTED IN WRITING. BUYER'S RIGHT TO VOID THIS AGREEMENT SHALL TERMINATE AT CLOSING.

87 The Association or Management Company to which assessments, special assessments or recreation/land
88 lease fees are due and payable is/are:

89 _____
90 **Contact Person** _____
91 **Phone** _____
92 **Email** _____

Contact Person _____
Phone _____
Email _____

93 Additional contact information can be found on the Association's website, www. _____

Buyer (____) (____) and **Seller** (____) (____) acknowledge receipt of a copy of this page.

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